

## WILMA • MULTI-JURISDICTION REFERENCE

# Hawaii — Expungement Reference Pack

*Non-conviction arrest expungement and conviction expungement for first-time drug, property, and DUI under 31 offenders, administered by the Hawaii Criminal Justice Data Center, Department of the Attorney General.*

| Administering body                   | Primary statute | Form                          | Timeline        |
|--------------------------------------|-----------------|-------------------------------|-----------------|
| HCJDC, Dept. of the Attorney General | HRS §831-3.2    | HCJDC 159(b), rev. 06/03/2026 | Within 120 days |

## Two distinct tracks

Hawaii runs expungement through one application form but two legally separate paths. Which track applies determines what must be attached and where the record is cleared from.

| TRACK                                                  | WHAT IT CLEARS                                                                                                                                                                                                       | KEY REQUIREMENT                                                                          |
|--------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| <b>Non-conviction</b><br>HRS §831-3.2                  | Arrest record at the arresting agency and the statewide repository. Courts may still retain records, though since July 1, 2025 the AG transmits the certificate to the court, which may then issue an Order to Seal. | No court order needed. Applicant declares they are not a fugitive from justice.          |
| <b>Conviction</b><br>§706-622.5 / .8 / .9; §291E-64(e) | Conviction information at the statewide repository only. Arresting agency and courts may still retain the record.                                                                                                    | Must attach the court order granting expungement. Without it, the application is denied. |

## Track 1 — Non-conviction arrest information (§831-3.2)

The Attorney General shall issue an expungement order annulling the record of arrest on written application from a person arrested for or charged with, but not convicted of, a crime — or found eligible for redress under Chapter 661B (wrongful conviction). The applicant may also request the return of non-digitized fingerprints and photographs. An order will **not** issue in these circumstances:

- Felony or misdemeanor arrest where no conviction was obtained because of bail forfeiture.
- Petty misdemeanor or violation, for five (5) years after arrest or citation, where no conviction was obtained because of bail forfeiture.
- Any offense where no conviction was obtained because the person rendered prosecution impossible by absenting themselves from the jurisdiction.
- ~~Person involuntarily hospitalized under HRS §706-607, or acquitted or dismissed under Chapter 704 due to a physical or mental disease, disorder, or defect.~~
- Deferred Acceptance of Guilty / Nolo Contendere Plea (Chapter 853): for one (1) year after discharge and dismissal of the charge.

- HRS §712-1200 charge under a deferred plea: for three (3) years after discharge and dismissal.

## Track 2 — Conviction expungement (court-ordered)

Only a court may grant expungement of a conviction. The applicant obtains the court order first, then submits it with the HCJDC application to clear the statewide repository entry. Qualifying provisions:

|                    |                                                                                                                                                             |
|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>§291E-64(e)</b> | Operating a vehicle after consuming a measurable amount of alcohol; persons under the age of twenty-one.                                                    |
| <b>§706-622.5</b>  | Sentencing for first-time drug offender. Expungement available one time only after successful completion of substance abuse treatment and probation terms.  |
| <b>§706-622.8</b>  | First-time drug offender sentenced prior to July 1, 2004; corrects an earlier drafting error so pre-2004 defendants may also expunge the conviction record. |
| <b>§706-622.9</b>  | Sentencing for first-time property offender. Eligible only if not previously convicted of a felony in any jurisdiction.                                     |

*Marijuana note: under §706-622.5(5), the court shall grant expungement on motion for a possession conviction (§712-1249) of three grams or less arising from facts that produced no other charge.*

## Fees, payment, and what to submit

| Item                                                  | Amount |
|-------------------------------------------------------|--------|
| First-time expungement                                | \$35   |
| Non-first-time expungement                            | \$50   |
| Duplicate certificate copy                            | \$20   |
| Non-refundable processing fee (included in the above) | \$10   |

Payment must be a U.S.-issued money order or cashier's check payable to "State of Hawaii." Personal checks, cash, and gift cards are not accepted. If an application is denied, the fee minus the \$10 processing fee is refunded.

### Checklist before filing

- Completed and signed HCJDC 159(b) application.
- Copy of a valid government-issued photo ID.
- Mailing address provided (certificate is mailed there within 120 days).
- Court order granting expungement — conviction track only.
- Payment by money order or cashier's check, U.S.-issued, payable to State of Hawaii.
- Self-addressed stamped envelope, mailed to HCJDC at 465 South King Street, Room 102, Honolulu, HI 96813.

### Effect and confidentiality

A person whose record is expunged is treated as not having been arrested (§831-3.2(b)). Expunged records are not divulged except on inquiry by a court, a government agency considering the person for a position directly affecting national or state security, or a law enforcement agency acting within its duties. Because of record

confidentiality, HCJDC will not provide application status by phone or email.

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*Prepared as a plain-language reference for the Wilma knowledge base. This summarizes Hawaii statute and HCJDC procedure as of June 2026 and is not legal advice. Statutory text governs; verify current fees and form revision before filing.*

participant/case info review zone

signature/date review zone